

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

-----x
MICHAELLE ORTEGA,

Plaintiff,

-against-

THE CITY OF NEW YORK, THE NEW YORK
CITY POLICE DEPARTMENT and DETECTIVE
MICHAEL SUMMA,

Defendants.
-----x

INDEX:

Date purchased:

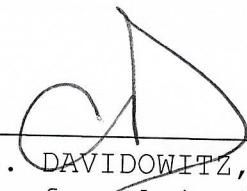
SUMMONS

Plaintiff designates
THE BRONX COUNTY
as the place of trial
The basis of venue is
SITUS OF THE INCIDENT
4511 Third Avenue,
Apartment 10H,
Bronx, NY 10457

TO THE ABOVE-MENTIONED DEFENDANTS:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's Attorneys within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York
October 15, 2024


CRAIG L. DAVIDOWITZ, P.C.
Attorney for Plaintiff
Office and P.O. Address
450 Seventh Ave, Suite 2702
New York, N.Y. 10123
Tel: (212) 378-2051

Defendants' Addresses:

THE CITY OF NEW YORK

100 Church Street

New York, New York 10007

THE NEW YORK CITY POLICE DEPARTMENT

100 Church Street

New York, New York 10007

DETECTIVE MICHAEL SUMMA

48th Police Precinct,

450 Cross Bronx Expressway,

Bronx, NY 10457

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

-----x
MICHAELLE ORTEGA,

Index No:
DATE PURCHASED:

Plaintiff,

**VERIFIED
COMPLAINT**

-against-

THE CITY OF NEW YORK, THE NEW YORK
CITY POLICE DEPARTMENT and DETECTIVE
MICHAEL SUMMA,

Defendant.
-----x

Plaintiff, complaining by his attorney, **CRAIG L.DAVIDOWITZ,**
P.C., respectfully alleges:

AS AND FOR A FIRST CAUSE OF ACTION

1. That on November 28, 2023, at approximately 7:15 P.M. when claimant was released from custody as a result of an arrest on November 28, 2023, at approximately 7:15 A.M. on the premises known as 4511 Third Avenue, Apartment 10H, Bronx NY, 10457, where claimant was wrongfully accused, arrested, imprisoned, prosecuted, and handcuffed for alleged Assault in the Third Degree (Penal Law §120.00), Endangering the Welfare of a Child (Penal Law §260.10), and Assault in the Second Degree (Penal Law §120.05), then subsequently taken to the 48th Police Precinct located at 450 Cross Bronx Expressway, Bronx, NY 10457, then subsequently taken to Central Booking located at 215 E. 161st Street, Bronx, NY 10451 where claimant was held until her release.
2. That this action was commenced within one year and ninety days after said cause of action occurred, that within ninety days after said cause of action occurred, the plaintiff duly presented and filed with THE CITY OF NEW YORK, a duly verified statement of plaintiff's claims against the defendant showing in detail the injuries, and asking payment and adjustment of plaintiff's said claim, and that notice of the intention to commence such an action as the present stating the time when and place where the injuries were incurred or sustained was similarly presented to and filed with THE CITY OF NEW YORK and although more than thirty (30) days have elapsed since

such presentation and filing, THE CITY OF NEW YORK, have neglected and refused to pay said claim. That a hearing pursuant to General Municipal Law Section 50-H was held October 8, 2024.

3. That this action was commenced within one year and ninety days after said cause of action occurred, that within ninety days after said cause of action occurred, the plaintiff duly presented and filed with THE NEW YORK CITY POLICE DEPARTMENT, a duly verified statement of plaintiff's claims against the defendant showing in detail the injuries, and asking payment and adjustment of plaintiff's said claim, and that notice of the intention to commence such an action as the present stating the time when and place where the injuries were incurred or sustained was similarly presented to and filed with THE NEW YORK CITY POLICE DEPARTMENT and although more than thirty (30) days have elapsed since such presentation and filing, THE NEW YORK CITY POLICE DEPARTMENT, have neglected and refused to pay said claim. That a hearing pursuant to General Municipal Law Section 50-H was held October 8, 2024.
4. That this action was commenced within one year and ninety days after said cause of action occurred, that within ninety days after said cause of action occurred, the plaintiff duly presented and filed with DETECTIVE MICHAEL SUMMA, a duly verified statement of plaintiff's claims against the defendant showing in detail the injuries, and asking payment and adjustment of plaintiff's said claim, and that notice of the intention to commence such an action as the present stating the time when and place where the injuries were incurred or sustained was similarly presented to and filed with DETECTIVE MICHAEL SUMMA and although more than thirty (30) days have elapsed since such presentation and filing, DETECTIVE MICHAEL SUMMA, have neglected and refused to pay said claim. That a hearing pursuant to General Municipal Law Section 50-H was held October 8, 2024.
5. That at all times hereinafter mentioned, plaintiff, MICHAELLE ORTEGA, was and still is a resident of the County of Bronx, State of New York.
6. That Defendant, THE CITY OF NEW YORK is and at all times hereinafter mentioned was a municipal corporation organized and existing under the laws of the State of New York.

7. That defendant, THE NEW YORK CITY POLICE DEPARTMENT, is and at all times hereinafter mentioned was a municipal corporation organized and existing under the laws of the State of New York.
8. That defendant, DETECTIVE MICHAEL SUMMA, is and at all times hereinafter mentioned was employed by defendant, THE CITY OF NEW YORK.
9. That defendant, DETECTIVE MICHAEL SUMMA, is and at all times hereinafter mentioned was employed by defendant, THE NEW YORK CITY POLICE DEPARTMENT.
10. That all times hereinafter mentioned defendant, THE CITY OF NEW YORK, its servants, agents and/or employees employed police officers and other personnel, to work as representatives of the City of New York.
11. That all times hereinafter mentioned defendant, THE NEW YORK CITY POLICE DEPARTMENT, its servants, agents and/or employees employed police officers and other personnel, to work as representatives of the City of New York.
12. That on or about November 28, 2023, at approximately 7:15 A.M., plaintiff, MICHAELLE ORTEGA, was lawfully present at the aforesaid location.
13. That on or about November 28, 2023, at approximately 7:15 A.M., plaintiff, MICHAELLE ORTEGA, was taken into custody, imprisoned, and confined by defendant, THE CITY OF NEW YORK
14. That on or about November 28, 2023, at approximately 7:15 A.M. plaintiff, MICHAELLE ORTEGA, was taken into custody imprisoned and confined by defendant, THE NEW YORK CITY POLICE DEPARTMENT.
15. That on or about November 28, 2023, at approximately 7:15 A.M., plaintiff, MICHAELLE ORTEGA, was taken into custody, imprisoned, and confined by defendant, THE CITY OF NEW YORK, and it was the intention of defendant THE CITY OF NEW YORK to so confine the plaintiff, and that plaintiff was

conscious of such confinement and did not consent to such confinement and neither was such confinement privileged.

16. That on or about November 28, 2023, at approximately 7:15 A.M., plaintiff, MICHAELLE ORTEGA, was taken into custody, imprisoned, and confined by defendant, THE NEW YORK CITY POLICE DEPARTMENT, and it was the intention of defendant THE NEW YORK CITY POLICE DEPARTMENT to so confine the plaintiff and that plaintiff was conscious of such confinement and did not consent to such confinement and neither was such confinement privileged.
17. That on or about November 28, 2023, at approximately 7:15 A.M., plaintiff, MICHAELLE ORTEGA, was handcuffed, taken into custody at the aforesaid location, transferred to the 48th Police Precinct, and thereafter forced to enter a cell by said officers, the plaintiff was detained and incarcerated with criminals and persons charged with crimes, to her shame and humiliation.
18. Plaintiff MICHAELLE ORTEGA was held in the custody of defendant THE CITY OF NEW YORK from November 28, 2023, at approximately 7:15 A.M. to November 28, 2023, at approximately 7:15 P.M.
19. Plaintiff MICHAELLE ORTEGA was held in the custody of defendant THE NEW YORK CITY POLICE DEPARTMENT from November 28, 2023, at approximately 7:15 A.M. to November 28, 2023, at approximately 7:15 P.M.
20. While plaintiff was held, defendant, THE CITY OF NEW YORK, failed to properly investigate the nature of the detainment and circumstances resulting from the improper search and seizure and false arrest, and as a result held plaintiff believing she violated applicable rules, laws and regulations.
21. While plaintiff was held, defendant, THE NEW YORK CITY POLICE DEPARTMENT, failed to properly investigate the nature of the detainment and circumstances resulting from the improper search and seizure and false arrest, and as a result held plaintiff believing she violated applicable rules, laws and regulations.

22. Plaintiff MICHAELLE ORTEGA remained imprisoned against her will, at all times conscious of such imprisonment until 7:15 P.M. when she was released from prison.
23. Said imprisonment, detention and confinement was made and caused to be made by the defendants without any justification, probable cause or excuse therefore and without any warrant or other process of any court directing or authorizing the imprisonment, detention or confinement of the plaintiff.
24. Said imprisonment, detention and confinement was made and caused to be made by the defendants through falsifying evidence, knowingly relying on false/misleading facts, and the false arrest was executed without a facially valid warrant.
25. That on or about November 28, 2023, at approximately 7:15 A.M. up to and including November 28, 2023, at approximately 7:15 P.M., the plaintiff was a victim of tortious conduct perpetrated by agents, servants, officers and or employees of the defendant, THE CITY OF NEW YORK, which tortious conduct consisted of negligence, false imprisonment, malicious prosecution, libel, slander, wrongful arrest, negligent and intentional infliction of emotional distress, negligent hiring and retention and violation of the plaintiff's civil rights.
26. That on or about November 28, 2023, at approximately 7:15 A.M. up to and including November 28, 2023, at approximately 7:15 P.M., the plaintiff was a victim of tortious conduct perpetrated by agents, servants, officers and or employees of the defendant, THE NEW YORK CITY POLICE DEPARTMENT, which tortious conduct consisted of negligence, false imprisonment, malicious prosecution, libel, slander, wrongful arrest, negligent and intentional infliction of emotional distress, negligent hiring and retention and violation of the plaintiff's civil rights.
27. As a result of the aforesaid tortious conduct, plaintiff sustained serious personal injury, inconvenience, mental anguish, humiliation, damages and losses, both physical and psychological.

28. At the aforesaid time and place, and at all times pertinent to this action, the individuals who committed the aforesaid tortious conduct that injured the plaintiff were agents, servants, officers and or employees of the defendant, THE CITY OF NEW YORK, and acting within the scope of their employment duties for THE CITY OF NEW YORK.
29. At the aforesaid time and place, and at all times pertinent to this action, the individuals who committed the aforesaid tortious conduct that injured the plaintiff were agents, servants, officers and or employees of the defendant, THE NEW YORK CITY POLICE DEPARTMENT, and acting within the scope of their employment duties for THE NEW YORK CITY POLICE DEPARTMENT.
30. At the aforesaid time and place, and at all times pertinent to this action, the individuals who committed the aforesaid tortious conduct that injured the plaintiff were agents, servants, officers and or employees of the defendant, DETECTIVE MICHAEL SUMMA, and acting within the scope of their employment duties for DETECTIVE MICHAEL SUMMA.
31. At the aforesaid time and place, and at all times pertinent to this action, the individuals who committed the aforesaid tortious conduct that injured the plaintiff were acting within the scope of their apparent authority as Police Officers.
32. At the aforesaid time and place and at all times pertinent to this action, the aforesaid tortious conduct that injured the plaintiff is imputable to THE CITY OF NEW YORK and under the doctrine of respondent superior.
33. At the aforesaid time and place and at all times pertinent to this action, the aforesaid tortious conduct that injured the plaintiff is imputable to THE NEW YORK CITY POLICE DEPARTMENT under the doctrine of respondent superior.
34. The tortious conduct that was committed by the defendant, THE CITY OF NEW YORK, was egregious and oppressive and characterized by malicious or wantonness justifying the imposition of punitive damages therefore.

35. The tortious conduct that was committed by the defendant, THE NEW YORK CITY POLICE DEPARTMENT, was egregious and oppressive and characterized by malicious or wantonness justifying the imposition of punitive damages therefore.
36. The imposition of punitive damages on the defendant, THE CITY OF NEW YORK, for the egregious tortious conduct of the defendants' employees is justified on the grounds that the defendants, THE CITY OF NEW YORK authorized and ratified the conduct and that the defendants were reckless or wanton in retaining and hiring the employees who committed the tort after knowledge of the employees' proclivities to engage in such conduct.
37. The imposition of punitive damages on the defendant, THE NEW YORK CITY POLICE DEPARTMENT, for the egregious tortious conduct of the defendants' employees is justified on the grounds that the defendants, THE NEW YORK CITY POLICE DEPARTMENT authorized and ratified the conduct and that the defendants were reckless or wanton in retaining and hiring the employees who committed the tort after knowledge of the employees' proclivities to engage in such conduct.

AS AND FOR A SECOND CAUSE OF ACTION

38. Plaintiff, MICHAELLE ORTEGA, repeats, reiterates, and realleges each and every paragraph numbered "1" through "35" inclusive as if more fully set forth at length herein.
39. That the defendant, THE CITY OF NEW YORK, in the absence of probable cause for criminal proceedings against the plaintiff, MICHAELLE ORTEGA, and with actual malice, commenced and continued with the criminal proceedings against the plaintiff, which proceedings were terminated in favor of the plaintiff.
40. That the defendant, THE NEW YORK CITY POLICE DEPARTMENT, in the absence of probable cause for criminal proceedings against the plaintiff, MICHAELLE ORTEGA, and with actual malice, commenced and continued with the criminal proceedings against the plaintiff, which proceedings were terminated in favor of the plaintiff.
41. That at the aforesaid time and place, and at the times pertinent hereto, the plaintiff was a victim of tortious

conduct perpetrated by agents, servants, officers and or employees of the defendant, THE CITY OF NEW YORK, which tortious conduct consisted of false and wrongful imprisonment, wrongful detainment in custody, malicious prosecution, negligent hiring and retention and violation of the plaintiff's civil rights.

42. That at the aforesaid time and place, and at the times pertinent hereto, the plaintiff was a victim of tortious conduct perpetrated by agents, servants, officers and or employees of the defendant, THE NEW YORK CITY POLICE DEPARTMENT, which tortious conduct consisted of false and wrongful imprisonment, wrongful detainment in custody, malicious prosecution, negligent hiring and retention and violation of the plaintiff's civil rights.
43. That at the aforesaid time and place, and at the times pertinent hereto, the plaintiff was victim of negligence on the part of the agents, servants, officers and or employees of the defendant, THE CITY OF NEW YORK, which included lodging a baseless complaint against the plaintiff, false imprisonment, wrongful imprisonment, wrongful detainment in custody, negligent and intentional infliction of emotional distress, all without probable cause or reasonable basis, in failing to prevent or aid in preventing the false and unfounded nature of criminal allegations against the plaintiff, despite being aware of same and in otherwise carelessly and improperly exercising their authority and power.
44. That at the aforesaid time and place, and at the times pertinent hereto, the plaintiff was victim of negligence on the part of the agents, servants, officers and or employees of the defendant, THE NEW YORK CITY POLICE DEPARTMENT, which included lodging a baseless complaint against the plaintiff, false imprisonment, wrongful imprisonment, wrongful detainment in custody, negligent and intentional infliction of emotional distress, all without probable cause or reasonable basis, in failing to prevent or aid in preventing the false and unfounded nature of criminal allegations against the plaintiff, despite being aware of same and in otherwise carelessly and improperly exercising their authority and power.
45. As a direct and proximate cause of the negligence described above the plaintiff sustained serious personal injury, inconvenience, mental anguish, humiliation, damages and losses, both physical and psychological.

46. That at all times pertinent hereto, the individuals whose negligence caused the plaintiff's injuries as described herein were employed by the defendants, THE CITY OF NEW YORK, in the capacity of agents, servants, officers and or employees.
47. That at all times pertinent hereto, the individuals whose negligence caused the plaintiff's injuries as described herein were employed by the defendants, THE NEW YORK CITY POLICE DEPARTMENT, in the capacity of agents, servants, officers and or employees.
48. The defendants' employees were acting in the scope of their employment, under the defendants' control and in furtherance of the defendants' interest at the time of their negligence which caused the plaintiff's injuries.

AS AND FOR A THIRD CAUSE OF ACTION

49. The plaintiff repeats, reiterates and realleges each and every paragraph numbered "1" through "46" inclusive as if more fully set forth at length herein.
50. That on or about November 28, 2023, the defendant, THE CITY OF NEW YORK hired the agent(s), servant(s), officer(s), and or employees who engaged in the aforesaid tortious conduct
51. That on or about November 28, 2023, the defendant, THE NEW YORK CITY POLICE DEPARTMENT hired the agent(s), servant(s), officer(s), and or employees who engaged in the aforesaid tortious conduct.
52. The aforesaid agent(s), servant(s), officer(s) and or employees continued to be employed by the defendant, THE CITY OF NEW YORK, through, including, and beyond November 28, 2023.
53. The aforesaid agent(s), servant(s), officer(s) and or employees continued to be employed by the defendant, THE NEW YORK CITY POLICE DEPARTMENT, through, including, and beyond November 28, 2023.
54. That on November 28, 2023, the aforesaid agent(s), servant(s), officer(s) and or employees were incompetent and unfit to perform the work required in their capacity of

agent(s), servant(s), officer(s) and or employees for the defendants, THE CITY OF NEW YORK.

55. That on November 28, 2023, the aforesaid agent(s), servant(s), officer(s) and or employees were incompetent and unfit to perform the work required in their capacity of agent(s), servant(s), officer(s) and or employees for the defendants, THE NEW YORK CITY POLICE DEPARTMENT.
56. The defendant, THE CITY OF NEW YORK, knew or should have known that a person in the plaintiff's position would be subjected to an unreasonable risk of harm from the aforesaid individuals committing said tortious conduct.
57. The defendant, THE NEW YORK CITY POLICE DEPARTMENT, knew or should have known that a person in the plaintiff's position would be subjected to an unreasonable risk of harm from the aforesaid individuals committing said tortious conduct.
58. The defendant, THE CITY OF NEW YORK, when they hired the agent (s) , servant (s) , officer (s) , and or employees who committed said tortious conduct breached the duty owed to the plaintiff to use reasonable care in hiring them in that they knew or should have known that they were incompetent or unfit for employment. Furthermore, defendants, THE CITY OF NEW YORK, failed to conduct reasonable investigation into the background and character of said agent(s), servant(s), officer(s) and employees.
59. The defendant, THE NEW YORK CITY POLICE DEPARTMENT, when they hired the agent (s) , servant (s) , officer (s) , and or employees who committed said tortious conduct breached the duty owed to the plaintiff to use reasonable care in hiring them in that they knew or should have known that they were incompetent or unfit for employment. Furthermore, defendant, THE NEW YORK CITY POLICE DEPARTMENT, failed to conduct reasonable investigation into the background and character of said agent(s), servant(s), officer(s) and employees.
60. That on or about November 28, 2023, agent(s), servant(s), officer(s) and or employees, of the defendant, THE CITY OF NEW YORK, falsely arrested the plaintiff, wrongfully arrested the plaintiff, wrongfully detained in custody, maliciously prosecuted, wrongfully imprisoned and falsely imprisoned the plaintiff.
61. That on or about November 28, 2023, agent(s), servant(s), officer(s) and or employees, of the defendant,

THE NEW YORK CITY POLICE DEPARTMENT, falsely arrested the plaintiff, wrongfully arrested the plaintiff, wrongfully detained in custody, maliciously prosecuted, wrongfully imprisoned and falsely imprisoned the plaintiff.

62. As a direct and proximate result of the defendants' breach of duty in hiring and retaining said agent(s), servant(s), officer(s) and or employees, the plaintiff sustained serious personal injuries both physical and psychological.

AS AND FOR A FOURTH CAUSE OF ACTION

63. The plaintiff repeats, reiterates and realleges each and every paragraph numbered "1" through "60" inclusive as if more fully set forth at length herein.
64. The acts of the defendant, THE CITY OF NEW YORK, their agent(s), servant(s), officer(s) and or employees described herein were done willfully, maliciously, outrageously, deliberately and purposely with the intention to inflict emotional distress upon the plaintiff and to destroy plaintiff's personal property and to destroy plaintiff's personal possessions, and they were all done in reckless disregard of the probability of causing the plaintiff emotional distress and these acts did in fact result in fear and extreme emotional distress.
65. The acts of the defendant, THE NEW YORK CITY POLICE DEPARTMENT, their agent(s), servant(s), officer(s) and or employees described herein were done willfully, maliciously, outrageously, deliberately and purposely with the intention to inflict emotional distress upon the plaintiff and to destroy plaintiff's personal property and to destroy plaintiff's personal possessions, and they were all done in reckless disregard of the probability of causing the plaintiff emotional distress and these acts did in fact result in fear and extreme emotional distress.
66. As a direct and proximate result of the acts mentioned above, plaintiff was caused to incur severe mental and emotional suffering, fright, anguish, shock, nervousness and anxiety. Plaintiff continues to be fearful, anxious and nervous for which he was required to seek and receive medical treatment.

AS AND FOR A FIFTH CAUSE OF ACTION

67. The plaintiff repeats, reiterates and realleges each and every paragraph numbered "1" through "64" inclusive as if more fully set forth at length herein
68. Plaintiff was imprisoned and detained without probable cause by the defendant, THE CITY OF NEW YORK, their agent(s), servant(s), officer(s) and or employees, who under the facts available did not have an objective, good faith belief that the plaintiff was guilty of the charges against her.
69. Plaintiff was imprisoned and detained without probable cause by the defendant, THE NEW YORK CITY POLICE DEPARTMENT, their agent(s), servant(s), officer(s) and or employees, who under the facts available did not have an objective, good faith belief that the plaintiff was guilty of the charges against her.
70. As a direct and proximate cause of the false imprisonment, wrongful imprisonment, unjustified false arrest, negligence and wrongful arrest, plaintiff has suffered damages both physical and psychological.

AS AND FOR A SIXTH CAUSE OF ACTION

71. The plaintiff repeats, reiterates and realleges each and every paragraph numbered "1" through "68" inclusive as if more fully set forth at length herein.
72. The defendant, THE CITY OF NEW YORK, their agent(s), servant(s), officer(s) and or employees, falsely imprisoned the plaintiff; all with the intent to inflict unnecessary harm against the plaintiff.
73. The defendant, THE NEW YORK CITY POLICE DEPARTMENT, their agent(s), servant(s), officer(s) and or employees, falsely imprisoned the plaintiff; all with the intent to inflict unnecessary harm against the plaintiff.
74. Such acts caused both physical and psychological injuries to the plaintiff.

75. Plaintiff alleges that such acts were in violation of her civil rights under the Fourth Amendment of the United States Constitution to be free from unreasonable imprisonment, and her right under the Fourteenth Amendment of the United States Constitution to due process of law.
76. Plaintiff's imprisonment was made under the authority of the agent(s), servant(s), officer(s) and or employees, of THE CITY OF NEW YORK.
77. Plaintiff's imprisonment was made under the authority of the agent(s), servant(s), officer(s) and or employees, of THE NEW YORK CITY POLICE DEPARTMENT.
78. Plaintiff further alleges that the violation of her constitutional rights was caused by the implementation of a custom, policy, or official act of the defendant, THE CITY OF NEW YORK, thereby making THE CITY OF NEW YORK agent(s), servant(s), officer(s) and or employees liable pursuant to 42 U.S.C. Section 1983.
79. Plaintiff further alleges that the violation of her constitutional rights was caused by the implementation of a custom, policy, or official act of the defendant, THE NEW YORK CITY POLICE DEPARTMENT, thereby making THE NEW YORK CITY POLICE DEPARTMENT agent(s), servant(s), officer(s) and or employees liable pursuant to 42 U.S.C. Section 1983.

AS AND FOR A SEVENTH CAUSE OF ACTION

80. The plaintiff repeats, reiterates and realleges each and every paragraph numbered "1" through "77" inclusive as if more fully set forth at length herein.
81. Pursuant to 42 U.S.C. Section 1983 and 1988 the plaintiffs seek an award of costs and attorney fees incurred in bringing this action.

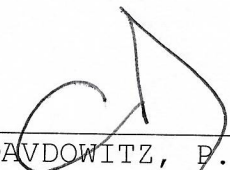
AS AND FOR A EIGHTH CAUSE OF ACTION

82. The plaintiff repeats, reiterates and realleges each and every paragraph numbered "1" through "79" inclusive as if more fully set forth at length herein.
83. Pursuant to 42 U.S.C. Section 1983, the plaintiff demands an award of punitive damages against the individuals involved in the subject occurrence.

84. The plaintiff has been damaged and injured in her good name and reputation; caused to suffer great humiliation, pain and anguish of mind, and has been injured in her health.

WHEREFORE, plaintiff demands judgment against defendants in an amount in excess of all lower courts which would otherwise have jurisdiction over this matter, together with the costs and disbursements of this action and attorney's fees.

DATED: NEW YORK, NEW YORK
October 15, 2024



CRAIG L. DAVDOWITZ, P.C.,
Attorney for Plaintiff
Office and P.O. Address
450 Seventh Avenue, Suite 2702
New York, New York 10123
Tel: (212) 378-2051

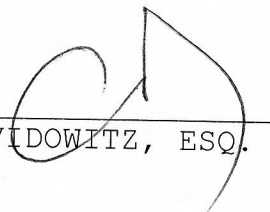
ATTORNEY'S VERIFICATION

The undersigned, an attorney admitted to practice in the Courts of the State of New York, affirms under the penalties of perjury:

That deponent is the attorney of record for the plaintiff(s) in the within action; that deponent has read the foregoing SUMMONS AND VERIFIED COMPLAINT and knows the contents thereof; that the same is true to deponent's own knowledge, except as to the matters therein stated to be alleged upon information and belief, and that as to those matters, deponent believes those to be true. Deponent further states that the reason this verification is made by deponent and not by the plaintiff(s) is that plaintiff(s) reside(s) in a county other than that in which deponent maintains his/her offices.

The grounds for deponent's belief as to all matters not stated upon his/her knowledge are investigations which he/she has made or has caused to be made concerning the subject matter of this action, and statements of parties or witnesses herein.

Dated: New York, New York
October 15, 2024



CRAIG L. DAVIDOWITZ, ESQ.

Index No.:

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX**

MICHAELLE ORTEGA,

Plaintiff,

-against-

**THE CITY OF NEW YORK, THE NEW YORK
CITY POLICE DEPARTMENT and DETECTIVE
MICHAEL SUMMA,**

Defendants.

SUMMONS AND VERIFIED COMPLAINT.

**CRAIG L. DAVIDOWITZ, P.C.
Attorney for Plaintiff
450 Seventh Avenue, Suite 2702
New York, New York 10123
Tel: (212) 378-2051**